

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Filed: _____

RONALD WILLIAMS,

INDEX NO.

Plaintiff,

Plaintiff designates Bronx
County as the place of trial.

-against-

**S U M M O N S
WITH NOTICE**

POLICE OFFICER CHRISTOPHER FOY (Shield #5101),
POLICE OFFICERS JOHN DOES 1-3 (actual names unknown at
this time), NEW YORK CITY POLICE DEPARTMENT and THE
CITY OF NEW YORK,

The basis of venue is
the County in which the
cause of action arose.

Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of
this summons is complete if this summons is not personally delivered to you within the State
of New York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
January 14, 2016

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

P.O. Christopher Foy (Shield #5101)
NYC Police Department, Service Area 7
737 Melrose Avenue
Bronx, NY 10451

P.O.s JOHN DOE
NYC Police Department, Service Area 7
737 Melrose Avenue
Bronx, NY 10451

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
Room 300
New York, New York 10038

THE CITY OF NEW YORK
1 Centre Street, Room 1238
Municipal Building
New York, New York 10007

NOTICE: The nature of this action is as follows:

To recover money damages for personal injuries, emotional and mental distress, injury to reputation and character and related damages incurred by and on behalf of plaintiff RONALD WILLIAMS by reason of the negligence, recklessness, carelessness and intentional conduct of defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. CHRISTOPHER FOY, unidentified police officers, their agents, servants, employees and/or licensees commencing at approximately 1:50 p.m. on July 6, 2013 in front of 677 East 165 Street, Bronx, New York, when the plaintiff was stopped while sitting in his motor vehicle, harassed, accosted, physical restrained and arrested by police officers of the New York City Housing Authority Intelligence Unit, including the individually named P.O. CHRISTOPHER FOY, while employing unnecessary and excessive physical force, causing plaintiff to sustain serious physical injuries requiring medical treatment at Lincoln Hospital and Medical Center. Specifically, the plaintiff sustained injury to his left wrist, when he was physically restrained with tightly placed handcuffs and then denied medical treatment for several hours; that his injury was caused while he was in police custody. Plaintiff alleges that the use of such unnecessary and excessive force was

intentional or the result of gross negligence. Plaintiff did not commit any violation or engage in any conduct which would justify the defendant(s) to employ such unnecessary and excessive force against the plaintiff, and the injuries inflicted upon the plaintiff by the unidentified defendants' use of unnecessary and excessive force was not the plaintiff's fault. The police officers' intentionally inflicted emotional distress on the plaintiff who is a New York City resident by wrongfully charging him with the offense of criminal possession of a controlled substance and wrongfully imprisoned plaintiff in a detention facility.

Based on the foregoing, plaintiff's claims against these defendants include the use of excessive force, false arrest and false imprisonment, malicious prosecution, and the violation of plaintiff's civil and constitutional rights pursuant to 42 U.S.C. 1983. Plaintiff seeks both compensatory and punitive damages and attorneys' fees.

UPON YOUR FAILURE TO APPEAR:

Judgment will be taken against you by default for a sum which exceeds the jurisdictional limits of all lower courts, with interest from July 6, 2013 and the cost of this action.

Dated: New York, New York
January 14, 2016

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RONALD WILLIAMS,

Plaintiff,

-against-

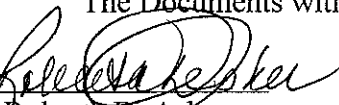
POLICE OFFICER CHRISTOPHER FOY (Shield #5101), POLICE OFFICERS JOHN DOES
1-3 (actual names unknown at this time), NEW YORK CITY POLICE DEPARTMENT and
THE CITY OF NEW YORK,

Defendants.

SUMMONS WITH NOTICE

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By


Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Fourteenth Floor

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE

NOTICE OF

ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the

within named Court on , 2016 .

NOTICE OF

SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the

of the within named Court, at , New York, on , 2016 , at 9:30
A.M.

Dated: